

DATE OF COUNCIL MEETING: August 11, 2014

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
 PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
 MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
 (APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) N/A

EXACT WORDING FOR AGENDA: An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium Density Residential To MR-2 Medium Density Residential – Developing For the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming, to be known as Diamond Estates, 5th filing (Replat in Process) (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Brandon Cammarata PHONE: 638-4303 DEPT: Bldg/Development

OTHER CITY DEPARTMENT AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: N/AFINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/ACONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described Zone Change request at their meeting on August 4, 2014, by a vote of 4-0. The motion was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC. See the attached staff report for more definitive information.

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Submitted by: Brandon Cammarata Title: Director Date: August 6, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech BranchCity Clerk's OfficeDevelopment OfficeBuilding Safety Office

STAFF REPORT - SUMMATION

Diamond Estates, 5th Filing

Zone District Map Amendment Process

CASE NUMBER(s): UDC-14-00273-01

FILE CODE: DMDE-PZ

PREPARED BY: Brett Walker

MEETING August 4, 2014 – Planning Commission

DATES: August 11, 2014 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from County MR Medium Density Residential to MR-2 Medium Density Residential – Developing District pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE: At their meeting on August 4, 2014, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change request by a vote of 4-0. The motion was made pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT

Diamond Estates, 5th Filing

Zone District Map Amendment Process

CASE NUMBER(s): UDC-14-00273-01

FILE CODE: DMDE-PZ

PREPARED BY: Brett Walker

MEETING DATES: August 4, 2014 – Planning Commission
August 11, 2014 – City Council

OWNER: Richardson Homes, Inc. 307-635-6166
101 Lexington Ave., Suite 2
Cheyenne, WY 82001

AGENT: Brad Emmons 307-637-6017
A.V.I., P.C.
1103 Old Town Lane, Ste. 101
Cheyenne, Wyoming 82009

PROJECT: Diamond Estates, 5th

WORK DESCRIPTIONS: To allow for construction of 11 twinhome/townhome lots to City regulations

LOCATION:

1. Legal Description: a replat of the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming
2. Location: Southeast corner of the intersection of Rock Springs Street and Pierce Avenue
3. Address: 3915 Pierce Ave., 4915 Rock Springs St.

SIZE: Total site: 1.39 acres (60,384 sf)

CURRENT ZONING: MR (County) Medium Density Residential

PROPOSED ZONING: MR-2 Medium Density Residential – Developing District

EXISTING LAND USE: Single Family / Vacant

PROPOSED LAND USE: Twinhome/Townhome

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Single Family	MR-2/CB(County)	City/County
South	Single Family	MR-2/MR(County)	City/County
East	Twinhome	MR-2	City
West	Single Family	HR(County)	County

EXECUTIVE SUMMARY:

This Zone Change request from MR Medium-Density Residential (County) to MR-2 Medium-Density Residential – Developing (City) has been submitted in conjunction with an Expedited Preliminary Plat. An Annexation application associated with this project is currently in process. As this site is being annexed into City jurisdiction, it is required that the zoning district be changed in order to regulate development to City standards. This proposal is for 11 twinhome/townhome units, continuing a development pattern that been established in the immediate vicinity. This includes not only the 75 or so twinhome/townhome units of the previous filings of Diamond Estates, but the Sunny Ridge Pointe and Dildine Villas projects to the east along Polk as well.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne recommends a Future Land Use Category of Urban Residential for this area, which is in line with this infill project, which proposes twinhomes/townhome development. The project will contribute to a mix of housing types and other principle outlined in the comprehensive plan (ref. Policy 1.3.b., 1.4.a., 2.3.a., and 2.3.b.). These types of residential developments should be within convenient proximity to neighborhood retail centers as well as open space and parks.

SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The area is identified in PlanCheyenne as one in which a more dense, urban development pattern is desired, including semi-detached twinhome lots. As previously stated, this project continues the pattern established by previous filings of Diamond Estates as well as the twinhomes and townhouses along the east side of Polk adjacent to this site and northward. While it denser than some of the remaining county

properties to the south and north, the project will extend City services further into a county pocket and provide opportunities for vacant or under-utilized land to be developed, should the opportunity arise.

ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

This Zone Change request is being submitted to assure consistency with City development regulations moving forward. It is currently County MR Medium-Density Residential. The request is to City MR-2 Medium-Density Residential – Developing, the closest district the City has with respect to the current County MR district. Given the recent application for annexation, and the associated application for platting, the property is more suited to development according to the proposed City zoning district.

STREETS & OPEN SPACE - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

This Zone Change request has been submitted in conjunction with a replat, which provides greater assurance of development in accordance with Article 4. No new Right-of-Way is being proposed, and the transportation network is established in this area. It appears that the subdivision standards in Article 4 will be met (see staff report for associated Expedited Preliminary Plat for more details).

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The proposed MR-2 District is intended for a mix of density and dwelling types within a neighborhood. All uses require full access to public infrastructure and city services. The district is applicable to areas where more compact neighborhood development patterns are desired, and specifically the Urban Residential Category in the Cheyenne Comprehensive Plan. This district should be supported by a highly connected street network with street design types that have low design speeds and residential character streetscapes.

This project meets the intent and applicability statements of the proposed MR-2 District, and design standards are in place for this infill project to be compatible with the surrounding neighborhood. The buildable lots as platted will be considered either SD2 or AD1 Lot types depending on twinhome or townhome development. Lot 3 is clearly dedicated to the City as a detention pond, and is thus not buildable.

ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the*

event that any specific development proposed in association with the application is not executed after approval.

The proposal intends for twinhome and townhome development. The options for single-family residential will be constrained by the small lot sizes being platted in association with this proposal. Duplexes would remain a viable option, but any multi-family proposal would require a Conditional Use Approval and Site Plan Review.

REVIEWING AGENCY AND REVIEWERS COMMENTS: None

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: MPO, Urban Planning, GIS

AGENCIES AND REVIEWERS NOT RESPONDING: City Engineer, City Attorney, Development, County Planning

OTHER COMMENTS RECEIVED: None

Encl: Zoning Map
Aerial Map

cc: Owner
Agent/Applicant
File

ORDINANCE NO. _____

Approved as to
form only:

D. White

Date: 8/01/2014

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY MR MEDIUM DENSITY RESIDENTIAL TO MR-2 MEDIUM DENSITY RESIDENTIAL - DEVELOPING FOR THE WEST 178' OF THE NORTH 102' OF TRACT 324, TRACT A (WEST 120' OF THE NORTH 102' OF TRACT 323 AND ALL OF THE NORTH 102' OF TRACT 324 EXCEPT THE WEST 178') AND TRACT B (ALL OF THE NORTH 102' OF TRACT 323 EXCEPT THE WEST 120'), SUNNYSIDE ADDITION, 7TH FILING, CHEYENNE, WYOMING, TO BE KNOWN AS DIAMOND ESTATES, 5TH FILING (REPLAT IN PROCESS) (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF ROCK SPRINGS STREET AND PIERCE AVENUE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 4, 2014, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming, to be known as Diamond Estates, 5th Filing, is hereby changed to MR-2 Medium Density Residential - Developing.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated *Diamond Estates, 5th Filing*, final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

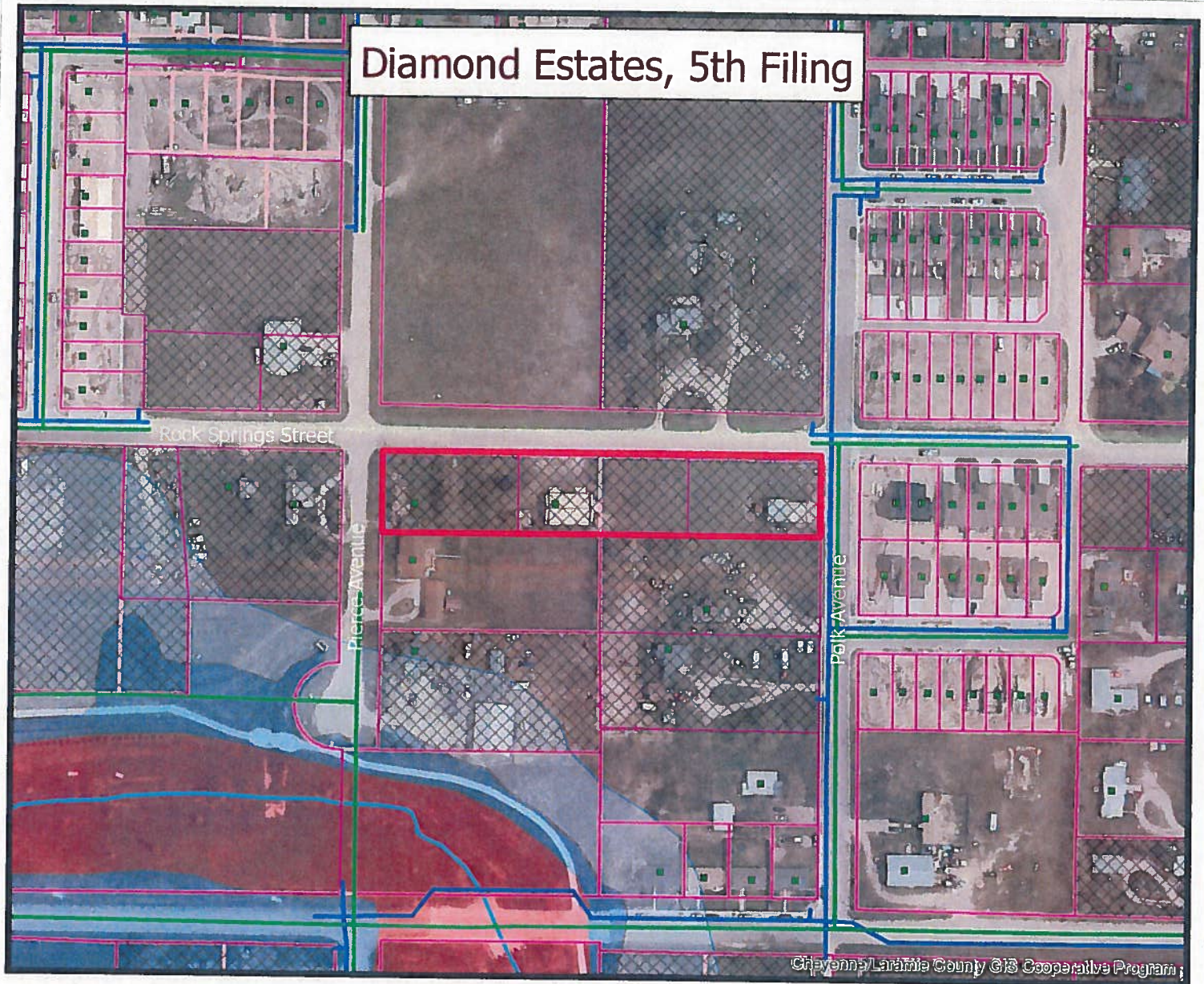
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

Diamond Estates, 5th Filing



Cheyenne/Laramie County GIS Cooperative Program

Applicant: Richardson Homes, Inc.
Agent: Brad Emmons, AVI
Application Number(s):
UDC-14-00273, UDC-14-00273-01

- Ownership
- Platted Info
- County Jurisdiction
- Water Mains
- Sanitary Sewer Mains

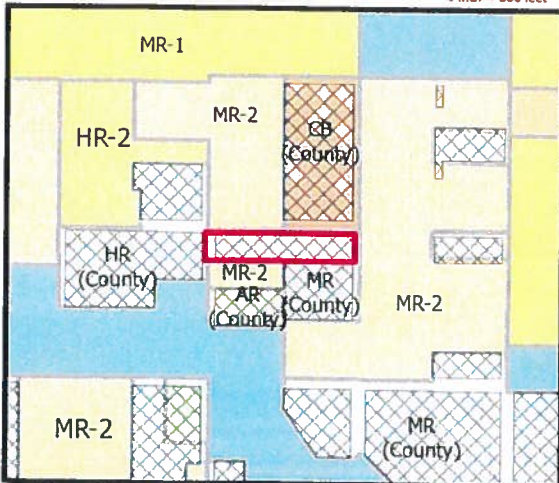


1 in = 200 ft

Expedited Preliminary Plat
and Zone Change Request

Zone Districts

1 inch = 800 feet

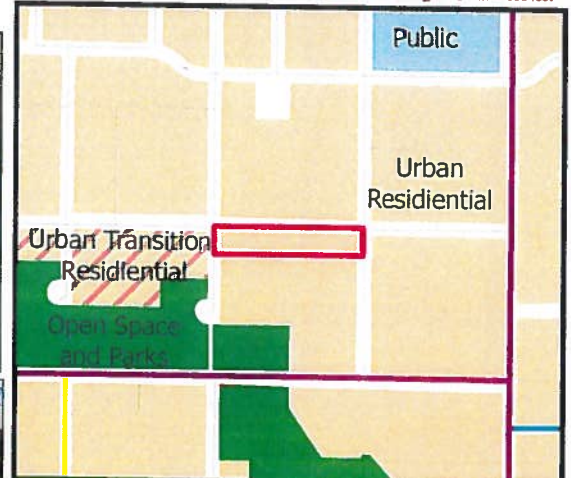


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

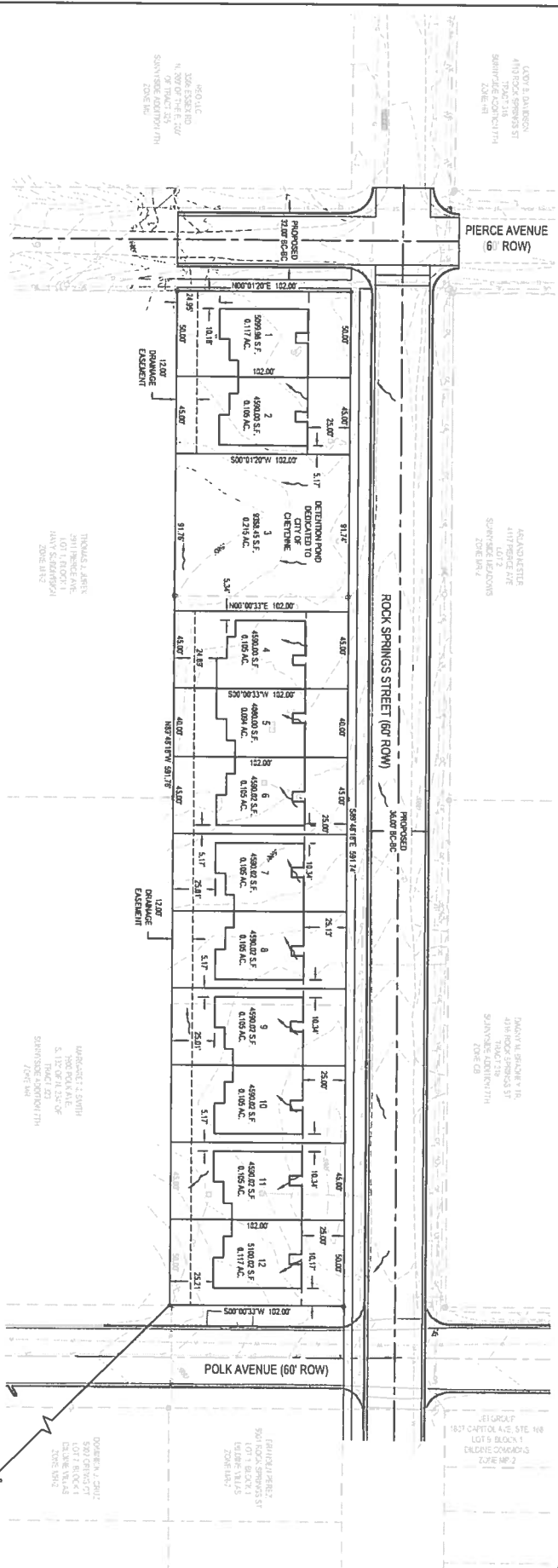


Future Land Use Map

1 inch = 800 feet



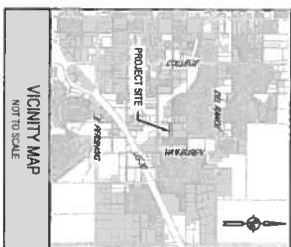
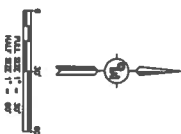
30 June 2014 BRW



- LEGEND**
- FOUND ALUMINUM CAP
 - FOUND IRON PIN
 - SET ALUMINUM CAP T512045

NOTES

1. TOGETHER WITH THE SUBMITTAL OF THE AIR IMPACT STATEMENT OF 2014.
2. DOWNEY WIND IS SHIPPED BY THE CITY OF CHEYENNE
3. SAGINAW STATE SERVICE TO BE SHIPPED BY THE CITY OF CHEYENNE
4. ALL ROADWAYS TO BE CONSTRUCTED TO CARBON CITY OF CHEYENNE
5. CONSTRUCTION STANDARDS. ALL WATER AND SEWER SHALL BE CONSTRUCTED TO COMPLY WITH STANDARDS.
6. COLEMAN ZONING, IIR
7. PROPOSED ZONING, JAC-2
8. ESTIMATED TRIPS PER DAY - 110
9. TOTAL SUBMISSION ADOPTION - 129 AC



**ZONE CHANGE
DIAMOND ESTATES 5TH
FILING**

THE WEST 178' OF THE NORTH 102' OF TRACT 324, TRACT A (THE WEST 120' OF THE NORTH 102' OF TRACT 323, AND ALL OF THE NORTH 102' OF TRACT 324 EXCEPT THE WEST 178'), AND TRACT B (ALL OF THE NORTH 102' OF TRACT 323 EXCEPT THE WEST 120')
SUNNYSIDE ADDITION, 7TH FILING
SECTION 26, TOWNSHIP 14 N., RANGE 66 W.
LARAMIE COUNTY, WYOMING

[illegible]

PREPARED FOR:
RICHARDSON CONSTRUCTION, INC.
101 LEXINGTON AVE. #2
CHEYENNE, WY 82007

PROJECT: DIAMOND ESTATES 5TH FILING

DRAWING TITLE: ZONE CHANGE

DATE:	02/11/16
Shipping RT:	TF
DISCOUNT RT:	TF
ORDER CRY:	AD
AD RT:	3604.14
PREMIUM:	PREMIUM
PREMIUM:	PREMIUM